

24STCV19779 24STCV19779

County: los-angeles

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Case Number: 24STCV19779 Hearing Date: July 1, 2026 Dept: 730

Superior Court of California

County of Los Angeles

Department 730

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VAROOJ ARAKELIAN,

Plaintiff,

vs.

CITY OF LOS ANGELES; LOS ANGELES UNIFIED SCHOOL DISTRICT ("LAUSD"); NEUTRON HOLDINGS, INC. dba LIME; and DOES 1 to 50, inclusive,

Defendants.

Case No.:

24STCV19779

Hearing Date:

July 1, 2026

[TENTATIVE] ORDER RE: MOTION TO BE RELIEVED AS COUNSEL

I. BACKGROUND

Plaintiff Varooj Arakelian ("Arakelian") was riding Defendant Neutron Holdings, Inc.'s ("Lime") scooter in front of Defendant Los Angeles Unified School District's ("LAUSD") premises when he ran over an uplifted sidewalk crack, causing him to fall off the scooter. Arakelian sues Defendants for products liability and premises liability.

On April 30, 2026, Arakelian's attorney, Robert L. Booker II ("Booker"), filed this instant motion to be relieved as counsel for Arakelian.

No opposition has been filed to date.

II. LEGAL STANDARD

The process to be relieved as counsel of record requires: (1) "[a] notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to be Relieved as Counsel— Civil (form MC-051)" (Cal. Rules of Court, rule 3.1362, subd. (a))[1]; (2) a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil (form MC-052), which "must state in general terms and without compromising the confidentiality of the attorney client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (rule 3.1362, subd. (c)); (3) a proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053)," "must be lodged with the court with the moving papers," and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known" (rule 3.1362, subd. (e)); and (4) "[t]he notice of motion and motion, declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" along with additional requirements depending on the type of service (rule 3.1362, subd. (d)).

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted if there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) "After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court." (Rule 3.1362, subd. (e).)

III. DISCUSSION

Here, Booker submitted completed MC-051, MC-052 and MC-053 forms in compliance with the rule 3.1362 requirements. Booker submitted a declaration stating that there have been irreconcilable breakdowns in the attorney-client relationship and attorney-client communication. (MC-052 ¶ 2(a)(2).) Booker asserts he served Arakelian at his last known address via mail, with return receipt requested. (MC-052 ¶ 3(b)(1)(a).) Booker also attempted to confirm Arakelian's address by calling Arakelian's telephone number. (MC-052 ¶ 3(b)(2)(a-b).)

The Court previously heard this motion on June 4, 2026. In its minute order, the Court noted that Booker did not comply with the service requirements. Rule 3.1362, subdivision (d), requires the notice of motion, motion, declaration, and proposed order be "served on the client and on all other parties who have appeared in this case." Booker has submitted proof of service on Defendants for the notice of motion, motion and declaration, but no proof of service for the proposed order. Additionally, Booker failed to submit proof of service for Arakelian for any of the filed papers. The Court noted that attestation of service under MC-052 ¶ 3 does not satisfy the proof of service requirements. The Court then continued the hearing to allow Booker to comply with the service requirements and ordered that he provide proof of service at least 5 days prior to the continued hearing date.

As of June 30, 2026, the only new filing Booker provided with the Court following the Court's June 4, 2026 minute order is proof of service on Defendants and Arakelian for the proposed order. Therefore, Booker is still not in compliance with the service requirements and has shown no efforts to submit proof of service for Arakelian of the notice of motion, motion, and declaration.

Therefore, the Court DENIES the motion to be relieved as counsel.

IV. CONCLUSION

The Court DENIES the motion to be relieved as counsel.

Moving Party is ordered to give notice.

DATED: July 1, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.